

Predictive Policing — Individual Crime Risk Scoring

Annex III(6) & Article 5 — Law Enforcement AI

Description

A police department uses an AI model to generate individual-level crime-risk scores predicting whether a specific named person will commit a crime within the next 90 days, using historical arrest records, postcode data, and social network links. Officers use these scores to justify pre-emptive stops, searches, or surveillance.

Why It May Violate the EU AI Act

- Individual predictive risk profiling by law enforcement is listed as high-risk under Annex III.
- May cross into prohibited territory if scores substitute for actual evidence of wrongdoing.
- Historical arrest data encodes racial and socioeconomic bias, causing discriminatory policing.
- Pre-emptive action based on AI probability scores violates the presumption of innocence.

Real-World Context

Systems like PredPol (now Geolitica) and Palantir Gotham have been deployed across the US and Europe. Several EU cities have faced lawsuits and public backlash. The EU AI Act requires law-enforcement AI to meet the highest compliance bar, including mandatory fundamental rights impact assessments.

This document is for educational and compliance awareness purposes only. It does not constitute legal advice. Consult qualified EU AI Act legal counsel for specific guidance.